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Case Number: 25STCV37044 Hearing Date: June 30, 2026 Dept: 408

1. Defendant 24 Hour Fitness, USA, LLC's Demurrer to Plaintiff Kaileb Harper's First Amended Complaint is OVERRULED.
2. Defendant 24 Hour Fitness, USA, LLC's Motion to Strike Portions of Plaintiff Kaileb Harper's First Amended Complaint is DENIED.

I. BACKGROUND

On December 18, 2025, Plaintiff Kaileb Harper ("Plaintiff") filed a complaint against Defendant 24 Hour Fitness, USA, LLC ("Defendant") alleging causes of action for:

1. Violation of California Civil Code § 51; and
2. Intentional Infliction of Emotional Distress.

On February 3, 2026, Plaintiff filed a First Amended Complaint ("FAC") alleging causes of action for:

1. Violation of California Civil Code § 51;
2. Intentional Infliction of Emotional Distress; and
3. Negligent Hiring, Supervision, and Retention.

On April 6, 2026, Defendant filed this Demurrer and Motion to Strike as to Plaintiff's FAC. On May 7, 2026, Plaintiff filed oppositions. As of May 13, 2026, no reply has been filed.

II. DEMURRER

A. Legal Standard

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of" various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

B. Discussion

Defendant demurs to Plaintiff's FAC pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), on the grounds that Plaintiff fails to state sufficient facts to constitute such causes of action and it is uncertain.

1. First Cause of Action – Violation of Civil Code § 51

The elements of a claim for violation of the Unruh Civil Rights Act are (1) defendant is a business establishment, (2) defendant intentionally denied plaintiff accommodations, advantages, privileges, facilities, or services, (3) defendant was motivated to do so based on its perception that plaintiff belonged to a statutorily defined group, (4) plaintiff was harmed, and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (Civ. Code, § 51; *In re Cox* (1970) 3 Cal.3d 205, 216.) "The objective of the Act is to prohibit businesses from engaging in unreasonable, arbitrary or invidious discrimination. Therefore, the Act applies not merely in situations where businesses exclude individuals altogether, but also where treatment is unequal." (*Pizarro v. Lamb's Players Theatre* (2006) 135 Cal.App.4th 1171, 1174 [citations omitted].)

Defendant argues that Plaintiff fails to state a claim under the Unruh Civil Rights Act as the FAC fails to impose vicarious liability against Defendant for the alleged actions of its employees. (Demurrer, at pp. 4-6.)

The FAC alleges that Plaintiff, a transgender African American man with a diagnosis of gender dysphoria, was a member and customer of Defendant's gym locations. (FAC, ¶¶ 2, 7-9, 11.) Plaintiff frequented Defendant's World Trade Center location which had a gender neutral bathroom for members that was later restricted to staff only. (*Id.*, ¶ 11b.) Without access to the gender neutral bathroom, Plaintiff began using the bathroom for men. (*Id.*, ¶ 11c) In 2022, while using the men's bathroom, another club member allegedly observed scars on Plaintiff's chest and followed Plaintiff out of the bathroom causing Plaintiff to feel harassed on account of being a transgender male. (*Id.*, ¶ 11d.) Plaintiff disclosed to the location managers that he was a transgender male and requested access to the staff bathroom to avoid the harassment and intimidation Plaintiff experienced from one of the customers. (*Id.*, ¶ 11e.) The managers refused to allow Plaintiff to use the employee bathroom. (*Ibid.*)

The FAC further alleges that, on November 15, 2023, Plaintiff visited Defendant's Bellflower Boulevard location where an employee repeatedly misgendered Plaintiff despite Plaintiff informing such employee that he identified as a man using he/him pronouns. (*Id.*, ¶ 12a.) The FAC alleges that the employee further harassed Plaintiff based on his gender by insisting that Plaintiff wear a shirt in the coed sauna when other male patrons were not required to do so. (*Ibid.*) Although Plaintiff complained to another employee regarding such discriminatory conduct, Plaintiff continued to be discriminated against by the same employee in December 2023 and on March 12, 2024. (*Id.*, ¶¶ 12b-c.) Plaintiff again complained to a different employee about being misgendered and alleges that such employee failed to conduct an investigation or to report the complaints to

management. (Id., ¶ 12c.) Due to such conduct and failure to remedy it, Plaintiff alleged that he was discouraged from fully utilizing the benefits, privileges, and accommodations he had as a member. (Id., ¶ 12d.)

The FAC also alleges that, on December 23, 2025, Plaintiff again visited the World Trade Center location where he requested to use the employee bathroom. (Id., ¶ 12e.) Plaintiff interacted with four employees, including a manager, who repeatedly misgendered Plaintiff throughout their conversation. (Ibid.) Plaintiff self-identified himself to the employees as a transgender male after being asked for a reason to use the staff bathroom. (Ibid.) The manager belatedly allowed Plaintiff to use the employee bathroom that day, but warned Plaintiff that he could not use it on future visits. (Ibid.)

The court finds that Plaintiff sufficiently alleges a cause of action pursuant to the Unruh Civil Rights Act. The FAC alleges that Defendant ratified the employee's wrongful conduct by retaining him as an employee and refusing to investigate his conduct. (FAC, ¶ 12c.) The FAC further alleges that the employees acted within the course and scope of their employment with Defendant. (Id., ¶ 5.) Such allegations are sufficient at the pleading stage to impose liability against Defendant for the alleged conduct of its employees under a theory of respondent superior.

The demurrer is overruled as to the first cause of action.

2. Second Cause of Action – Intentional Infliction of Emotional Distress

“The elements of a cause of action for intentional infliction of emotional distress are: (1) outrageous conduct by the defendant, (2) intention to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional suffering and (4) actual and proximate causation of the emotional distress.” (Wong v. Jing (2010) 189 Cal.App.4th 1354, 1376.)

Defendant argues that the intentional infliction of emotional distress claim fails as Plaintiff did not sufficiently allege an intent to inflict emotional distress, that the conduct alleged was outrageous, and that Defendant ratified the conduct of its employees. (Demurrer, at pp. 6-7.)

The court finds that the FAC sufficiently alleged a claim for intentional infliction of emotional distress based on the employees repeated pattern of misgendering of Plaintiff, despite being corrected, and disrupting Plaintiff's right to use bathrooms free from discrimination and harassment on account of his gender. (FAC, ¶ 25.) Such allegations demonstrate intentional conduct directed at Plaintiff, or at a minimum a reckless disregard, causing emotional distress. This is sufficient to plead outrageous conduct at this stage and Defendant's liability arises from its employer relationship to those employees.

The demurrer is overruled as to the second cause of action.

3. Third Cause of Action – Negligent Hiring, Supervision, and Retention

To plead a claim for negligent hiring, supervision, or retention, a plaintiff must demonstrate that the defendant knew or should have known of the employee's unfitness or dangerous propensity, that this unfitness proximately caused the alleged harm, and that the conduct occurred within the scope of the employment or agency. (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.)

Defendant argues that the FAC contains vague and conclusory as to who denied Plaintiff his full and equal use of the facilities and how this was done. (Demurrer, at p. 7.)

The court disagrees. The FAC lays out specific allegations regarding who, how, and when Plaintiff was denied his equal use of Defendant's facilities through the employees conduct as explained above. (FAC, ¶¶ 11-12.)

The demurrer is overruled as to the third cause of action.

III. MOTION TO STRIKE

A. Legal Standard

Pursuant to Code of Civil Procedure section 436, "the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) The grounds for a motion to strike must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.)

B. Discussion

Defendant seeks to strike Plaintiff's request for punitive damages arguing that the allegations do not demonstrate sufficient acts of fraud, oppression, or malice and the FAC fails to allege Defendant's ratification of the employees' conduct. (Motion, at pp. 4-8.)

Punitive damages may be awarded in an action for the breach of an obligation not arising from contract upon clear and convincing evidence that a defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).)

"Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Oppression" is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).)

The court finds that Plaintiff provides sufficient allegations to support a request for punitive damages. At the pleading stage, the court treats all properly pled facts as admitted and a plaintiff need only allege ultimate facts of the defendant's "oppression, fraud, or malice." (Cyrus v. Haverson (1976) 65 Cal.App.3d 306, 316-317.) The FAC alleges discriminating conduct directed at Plaintiff by Defendant's employees. (FAC, ¶¶ 11-12.) Such allegations are sufficient at the pleading stage and meet the ratification requirements of Civil Code section 3294(b). (Civ. Code, § 3294, subd. (b) [when seeking damages from an employer, an employer is not liable for punitive damages arising from an employee's actions unless the employer authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice].)

Accordingly, the motion is denied.

IV. CONCLUSION

1. Defendant 24 Hour Fitness, USA, LLC's Demurrer to Plaintiff Kaileb Harper's First Amended Complaint is **OVERRULED**.

2. Defendant 24 Hour Fitness, USA, LLC's Motion to Strike Portions of Plaintiff Kaileb Harper's First Amended Complaint is **DENIED**.